



Bill Number: S.B. 1723

Mesnard Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that electronic monitoring may only be imposed on a person who is charged with a domestic violence offense and subsequently released on bail if the domestic violence resulted in physical harm to another person.
2. Stipulates that the requirement for a domestic violence offender to provide certain identifying information to the plaintiff may only be imposed after a hearing where it is established that the defendant has a prior history of harming the plaintiff.
3. Modifies the definition of significant domestic violence to include a parent's pattern of coercive or controlling behavior that is intended to limit the autonomy of the other parent by way of:
 - a) controlling or monitoring daily activities, movements, communications, finances, travel, associations or access to services;
 - b) isolating the other parent from family or support systems; or
 - c) using threats of self-harm or suicide to compel compliance.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1723
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3602, Arizona Revised Statutes, is amended to
3 read:

4 13-3602. Order of protection; procedure; contents; arrest for
5 violation; penalty; protection order from another
6 jurisdiction; definition

7 A. A person may file a verified petition, as in civil actions, with
8 a magistrate, justice of the peace or superior court judge for an order of
9 protection for the purpose of restraining a person from committing an act
10 included in domestic violence. If the person is a minor, the parent,
11 legal guardian or person who has legal custody of the minor shall file the
12 petition unless the court determines otherwise. The petition shall name
13 the parent, guardian or custodian as the plaintiff and the minor is a
14 specifically designated person for the purposes of subsection G of this
15 section. If a person is either temporarily or permanently unable to
16 request an order, a third party may request an order of protection on
17 behalf of the plaintiff. After the request, the judicial officer shall

1 determine if the third party is an appropriate requesting party for the
2 plaintiff. For the purposes of this section, notwithstanding the location
3 of the plaintiff or defendant, any court in this state may issue or
4 enforce an order of protection.

5 B. An order of protection shall not be granted:

6 1. Unless the party who requests the order files a written verified
7 petition for an order.

8 2. Against a person who is less than twelve years of age unless the
9 order is granted by the juvenile division of the superior court.

10 3. Against more than one defendant.

11 C. The petition shall state the:

12 1. Name of the plaintiff. The plaintiff's address and contact
13 information shall be disclosed to the court for purposes of service and
14 notification. The address and contact information shall not be listed on
15 the petition. Whether or not the court issues an order of protection, the
16 plaintiff's address and contact information shall be maintained in a
17 separate document or automated database and is not subject to release or
18 disclosure by the court or any form of public access except as ordered by
19 the court.

20 2. Name and address, if known, of the defendant.

21 3. Specific statement, including dates, of the domestic violence
22 alleged.

23 4. Relationship between the parties pursuant to section 13-3601,
24 subsection A and whether there is pending between the parties an action
25 for maternity or paternity, annulment, legal separation or dissolution of
26 marriage.

27 5. Name of the court in which any prior or pending proceeding or
28 order was sought or issued concerning the conduct that is sought to be
29 restrained.

30 6. Desired relief.

31 D. A fee shall not be charged for filing a petition under this
32 section or for service of process. Each court shall provide, without
33 charge, forms for purposes of this section for assisting parties without
34 counsel. The court shall make reasonable efforts to provide the
35 appropriate information to both parties on emergency and counseling
36 services that are available in the local area.

37 E. The court shall review the petition, any other pleadings on file
38 and any evidence offered by the plaintiff, including any evidence of
39 harassment by electronic contact or communication, to determine whether
40 the orders requested should issue without further hearing. The court
41 shall issue an order of protection under subsection G of this section if
42 the court determines that there is reasonable cause to believe any of the
43 following:

44 1. The defendant may commit an act of domestic violence.

45 2. The defendant has committed an act of domestic violence within
46 the past year or within a longer period of time if the court finds that
47 good cause exists to consider a longer period.

48 F. For the purposes of determining the period of time under
49 subsection E, paragraph 2 of this section, any time that the defendant has

1 been incarcerated or out of this state shall not be counted. If the court
2 denies the requested relief, it may schedule a further hearing within ten
3 days, with reasonable notice to the defendant.

4 G. If a court issues an order of protection, the court may do any
5 of the following:

6 1. Enjoin the defendant from committing a violation of one or more
7 of the offenses included in domestic violence.

8 2. Grant one party the use and exclusive possession of the parties'
9 residence on a showing that there is reasonable cause to believe that
10 physical harm may otherwise result. If the other party is accompanied by
11 a law enforcement officer, the other party may return to the residence on
12 one occasion to retrieve belongings. A law enforcement officer is not
13 liable for any act or omission in the good faith exercise of the officer's
14 duties under this paragraph. While the order of protection is in effect,
15 if a party was granted the use and exclusive possession of the parties'
16 residence and subsequently moves out of the ~~house~~ RESIDENCE, the party
17 must file a notice in writing with the court within five days after moving
18 out of the residence. After receiving the notification from the
19 plaintiff, the court shall provide notice to the defendant that the
20 plaintiff has moved out of the residence and of the defendant's right to
21 request a hearing pursuant to subsection L of this section.

22 3. Restrain the defendant from contacting the plaintiff or other
23 specifically designated persons and from coming near the residence, place
24 of employment or school of the plaintiff or other specifically designated
25 locations or persons on a showing that there is reasonable cause to
26 believe that physical harm may otherwise result.

27 4. If the court finds that the defendant is a credible threat to
28 the physical safety of the plaintiff or other specifically designated
29 persons, prohibit the defendant from possessing or purchasing a firearm
30 for the duration of the order. If the court prohibits the defendant from
31 possessing a firearm, the court shall also order the defendant to transfer
32 any firearm owned or possessed by the defendant immediately after service
33 of the order to the appropriate law enforcement agency for the duration of
34 the order. If the defendant does not immediately transfer the firearm,
35 the defendant shall transfer the firearm within twenty-four hours after
36 service of the order.

37 5. If the order was issued after notice and a hearing at which the
38 defendant had an opportunity to participate, require the defendant to
39 complete a domestic violence offender treatment program that is provided
40 by a facility approved by the department of health services or a probation
41 department or any other program deemed appropriate by the court.

42 6. Grant relief that is necessary for the protection of the alleged
43 victim and other specifically designated persons and that is proper under
44 the circumstances.

45 7. Grant the plaintiff the exclusive care, custody or control of
46 any animal that is owned, possessed, leased, kept or held by the
47 plaintiff, the defendant or a minor child residing in the residence or
48 household of the plaintiff or the defendant, and order the defendant to
49 stay away from the animal and forbid the defendant from taking,

1 transferring, encumbering, concealing, committing an act of cruelty or
2 neglect in violation of section 13-2910 or otherwise disposing of the
3 animal.

4 8. 8. {{FOLLOWING A HEARING.}} REQUIRE THE DEFENDANT TO PROVIDE
5 IDENTIFYING INFORMATION TO THE PLAINTIFF, INCLUDING THE DEFENDANT'S
6 RESIDENCE, PLACE OF EMPLOYMENT OR VEHICLE INFORMATION, ON A SHOWING THAT
7 {{THE DEFENDANT HAS A PRIOR HISTORY OF HARMING THE PLAINTIFF AND}} THERE
8 IS REASONABLE CAUSE TO BELIEVE THAT {{WITHOUT THIS INFORMATION}} PHYSICAL
9 HARM {{MAY}} {{WOULD}} OTHERWISE RESULT.

10 H. The court shall not grant a mutual order of protection. If
11 opposing parties separately file verified petitions for an order of
12 protection, the courts after consultation between the judges involved may
13 consolidate the petitions of the opposing parties for hearing. This does
14 not prohibit a court from issuing cross orders of protection.

15 I. After granting an order of protection, the court shall provide
16 the order to a law enforcement agency or a constable as set forth in
17 subsection J of this section for service or to an entity that is
18 authorized in subsection K of this section to serve process. The agency
19 or entity serving the order shall provide confirmation of service to the
20 plaintiff as soon as practicable. If service of an order cannot be
21 completed within fifteen days after the agency or entity receives the
22 order, the agency or entity that is attempting service shall notify the
23 plaintiff and continue to attempt service. This notification may be
24 completed by a victim notification system, if available.

25 J. If the order of protection is provided to a law enforcement
26 agency or a constable, service of an order of protection is as follows:

27 1. For each order of protection that is issued by a municipal
28 court, if the defendant can be served within that city or town, the order
29 shall be served by the law enforcement agency of that city or town. If
30 the order can be served in another city or town, the order shall be served
31 by the law enforcement agency of that city or town. If the order cannot
32 be served within a city or town, the order shall be served by the sheriff
33 or constable of the county in which the defendant can be served.

34 2. For each order of protection that is issued by a justice of the
35 peace, the order of protection shall be served by the sheriff or constable
36 of the county in which the defendant can be served or by a municipal law
37 enforcement agency.

38 3. For each order of protection that is issued by a superior court
39 judge or commissioner, the order of protection shall be served by the
40 sheriff or constable of the county where the defendant can be served.

41 K. In addition to persons authorized to serve process pursuant to
42 rule 4(d) of the Arizona rules of civil procedure, a peace officer or a
43 correctional officer as defined in section 41-1661 who is acting in the
44 officer's official capacity may serve an order of protection that is
45 issued pursuant to this section. Service of the order of protection has
46 priority over other service of process that does not involve an immediate
47 threat to the safety of a person.

48 L. At any time during the period during which the order is in
49 effect, a party who is under an order of protection or who is restrained

1 from contacting the other party is entitled to one hearing on written
2 request. No fee may be charged for requesting a hearing. A hearing that
3 is requested by a party who is under an order of protection or who is
4 restrained from contacting the other party shall be held within ten days
5 from the date requested unless the court finds good cause to continue the
6 hearing. If exclusive use of the home is awarded, the hearing shall be
7 held within five days from the date requested. The hearing shall be held
8 at the earliest possible time. An ex parte order that is issued under
9 this section shall state on its face that the defendant is entitled to a
10 hearing on written request and shall include the name and address of the
11 judicial office where the request may be filed. After the hearing, the
12 court may modify, quash or continue the order. If the exclusive use of
13 the home is awarded to the party, the court, on written request of a
14 party, may hold additional hearings at any time if there is a change in
15 circumstances related to the primary residence.

16 M. The order shall include the following statement:

17 Warning

18 This is an official court order. If you disobey this
19 order, you will be subject to arrest and prosecution for the
20 crime of interfering with judicial proceedings and any other
21 crime you may have committed in disobeying this order.

22 N. An order of protection that is not served on the defendant
23 within one year after the date that the order is issued expires. An order
24 is effective on the defendant on service of a copy of the order and
25 petition. An order expires two years after service on the defendant. A
26 modified order is effective on service and expires two years after service
27 of the initial order and petition.

28 O. A supplemental information form that is used by the court or a
29 law enforcement agency solely for the purposes of service of process on
30 the defendant and that contains information provided by the plaintiff is
31 confidential.

32 P. Each affidavit, declaration, acceptance or return of service
33 shall be filed as soon as practicable but not later than seventy-two
34 hours, excluding weekends and holidays, with the clerk of the issuing
35 court or as otherwise required by court rule. This filing shall be
36 completed in person, electronically or by fax.

37 Q. The supreme court shall maintain a central repository for orders
38 of protection. Within twenty-four hours after the affidavit, declaration,
39 acceptance or return of service has been filed, excluding weekends and
40 holidays, the court from which the order or any modified order was issued
41 shall enter the order and proof of service into the supreme court's
42 central repository for orders of protection. The supreme court shall
43 register the order with the national crime information center. The
44 effectiveness of an order does not depend on its registration, and for
45 enforcement purposes pursuant to section 13-2810, a copy of an order of
46 the court, whether or not registered, is presumed to be a valid existing
47 order of the court for a period of two years from the date of service of
48 the order on the defendant.

1 R. A peace officer, with or without a warrant, may arrest a person
2 if the peace officer has probable cause to believe that the person has
3 violated section 13-2810 by disobeying or resisting an order that is
4 issued in any jurisdiction in this state pursuant to this section, whether
5 or not such violation occurred in the presence of the officer. Criminal
6 violations of an order issued pursuant to this section shall be referred
7 to an appropriate law enforcement agency. The provisions for release
8 under section 13-3883, subsection A, paragraph 4 and section 13-3903 do
9 not apply to an arrest made pursuant to this section. For the purposes of
10 this section, any court in this state has jurisdiction to enforce a valid
11 order of protection that is issued in this state and that has been
12 violated in any jurisdiction in this state.

13 S. A person who is arrested pursuant to subsection R of this
14 section may be released from custody in accordance with the Arizona rules
15 of criminal procedure or any other applicable statute. An order for
16 release, with or without an appearance bond, shall include pretrial
17 release conditions that are necessary to provide for the protection of the
18 alleged victim and other specifically designated persons and may provide
19 for any other additional conditions that the court deems appropriate,
20 including participation in any counseling programs available to the
21 defendant. The agency with custody of the defendant shall make reasonable
22 efforts to contact the victim and other specifically designated persons in
23 the order of protection, if known to the custodial agency, who requested
24 notification immediately on release of the arrested person from custody.

25 T. The remedies provided in this section for enforcement of the
26 orders of the court are in addition to any other civil and criminal
27 remedies available. The superior court shall have exclusive jurisdiction
28 to issue orders of protection in all cases if it appears from the petition
29 that an action for maternity or paternity, annulment, legal separation or
30 dissolution of marriage is pending between the parties. A municipal court
31 or justice court shall not issue an order of protection if it appears from
32 the petition that an action for maternity or paternity, annulment, legal
33 separation or dissolution of marriage is pending between the parties.
34 After issuance of an order of protection, if the municipal court or
35 justice court determines that an action for maternity or paternity,
36 annulment, legal separation or dissolution of marriage is pending between
37 the parties, the municipal court or justice court shall stop further
38 proceedings in the action and forward all papers, together with a
39 certified copy of docket entries or any other record in the action, to the
40 superior court where they shall be docketed in the pending superior court
41 action and shall proceed as though the petition for an order of protection
42 had been originally brought in the superior court. Notwithstanding any
43 other law and unless prohibited by an order of the superior court, a
44 municipal court or justice court may hold a hearing on all matters
45 relating to its ex parte order of protection if the hearing was requested
46 before receiving written notice of the pending superior court action. ~~NO~~
47 ~~AN~~ order of protection shall ~~NOT~~ be invalid or determined to be
48 ineffective merely because it was issued by a lower court at a time when
49 an action for maternity or paternity, annulment, legal separation or

1 dissolution of marriage was pending in a higher court. After a hearing
2 with notice to the affected party, the court may enter an order requiring
3 any party to pay the costs of the action, including reasonable attorney
4 fees, if any. An order that is entered by a justice court or municipal
5 court after a hearing pursuant to this section may be appealed to the
6 superior court as provided in title 22, chapter 2, article 4, section
7 22-425, subsection B and the superior court rules of civil appellate
8 procedure without regard to an amount in controversy. ~~No~~ A fee may NOT be
9 charged to either party for filing an appeal. For the purposes of this
10 subsection, "pending" means, with respect to an action for annulment,
11 legal separation or dissolution of marriage or for maternity or paternity,
12 either that:

13 1. An action has been commenced but a final judgment, decree or
14 order has not been entered.

15 2. A post-decree proceeding has been commenced but a judgment,
16 decree or order finally determining the proceeding has not been entered.

17 U. A peace officer who makes an arrest pursuant to this section or
18 section 13-3601 is not civilly or criminally liable for the arrest if the
19 officer acts on probable cause and without malice.

20 V. A valid protection order that is related to domestic or family
21 violence and that is issued by a court in another state, a court of a
22 United States territory or a tribal court shall be accorded full faith and
23 credit and shall be enforced as if it were issued in this state for as
24 long as the order is effective in the issuing jurisdiction. For the
25 purposes of this subsection:

26 1. A protection order includes any injunction or other order that
27 is issued for the purpose of preventing violent or threatening acts or
28 harassment against, contact or communication with or physical proximity to
29 another person. A protection order includes temporary and final orders
30 other than support or child custody orders that are issued by civil and
31 criminal courts if the order is obtained by the filing of an independent
32 action or is a pendente lite order in another proceeding. The civil order
33 shall be issued in response to a complaint, petition or motion that was
34 filed by or on behalf of a person seeking protection.

35 2. A protection order is valid if the issuing court had
36 jurisdiction over the parties and the matter under the laws of the issuing
37 state, a United States territory or an Indian tribe and the person against
38 whom the order was issued had reasonable notice and an opportunity to be
39 heard. If the order is issued ex parte, the notice and opportunity to be
40 heard shall be provided within the time required by the laws of the
41 issuing state, a United States territory or an Indian tribe and within a
42 reasonable time after the order was issued.

43 3. A mutual protection order that is issued against both the party
44 who filed a petition or a complaint or otherwise filed a written pleading
45 for protection against abuse and the person against whom the filing was
46 made is not entitled to full faith and credit if either:

47 (a) The person against whom an initial order was sought has not
48 filed a cross or counter petition or other written pleading seeking a
49 protection order.

1 (b) The issuing court failed to make specific findings supporting
2 the entitlement of both parties to be granted a protection order.

3 4. A peace officer may presume the validity of and rely on a copy
4 of a protection order that is issued by another state, a United States
5 territory or an Indian tribe if the order was given to the officer by any
6 source. A peace officer may also rely on the statement of any person who
7 is protected by the order that the order remains in effect. A peace
8 officer who acts in good faith reliance on a protection order is not
9 civilly or criminally liable for enforcing the protection order pursuant
10 to this section.

11 W. For the purposes of this section, "victim notification system"
12 means an automated system that may provide plaintiffs and crime victims
13 with an automated notification regarding the person's case.

14 Sec. 2. Section 13-3967, Arizona Revised Statutes, is amended to
15 read:

16 13-3967. Release on bailable offenses before trial:
17 definition

18 A. At his appearance before a judicial officer, any person who is
19 charged with a public offense that is bailable as a matter of right shall
20 be ordered released pending trial on his own recognizance or on the
21 execution of bail in an amount specified by the judicial officer.

22 B. In determining the method of release or the amount of bail, the
23 judicial officer, on the basis of available information, shall take into
24 account all of the following:

25 1. The views of the victim.

26 2. The nature and circumstances of the offense charged.

27 3. Whether the accused has a prior arrest or conviction for a
28 serious offense or violent or aggravated felony as defined in section
29 13-706 or an offense in another state that would be a serious offense or
30 violent or aggravated felony as defined in section 13-706 if committed in
31 this state.

32 4. Evidence that the accused poses a danger to others in the
33 community.

34 5. The results of a risk or lethality assessment in a domestic
35 violence charge that is presented to the court.

36 6. The weight of evidence against the accused.

37 7. The accused's family ties, employment, financial resources,
38 character and mental condition.

39 8. The results of any drug test submitted to the court.

40 9. Whether the accused is using any substance if its possession or
41 use is illegal pursuant to chapter 34 of this title.

42 10. Whether the accused violated section 13-3407, subsection A,
43 paragraph 2, 3, 4 or 7 involving methamphetamine or section 13-3407.01.

44 11. The length of residence in the community.

45 12. The accused's record of arrests and convictions.

46 13. The accused's record of appearance at court proceedings or of
47 flight to avoid prosecution or failure to appear at court proceedings.

48 14. Whether the accused has entered or remained in the United
49 States illegally.

1 15. Whether the accused's residence is in this state, in another
2 state or outside the United States.

3 C. If a judicial officer orders the release of a defendant who is
4 charged with a felony either on his own recognizance or on bail, the
5 judicial officer shall condition the defendant's release on the
6 defendant's good behavior while so released. On a showing of probable
7 cause that the defendant committed any offense during the period of
8 release, a judicial officer may revoke the defendant's release pursuant to
9 section 13-3968.

10 D. After providing notice to the victim pursuant to section
11 13-4406, a judicial officer may impose any of the following conditions on
12 a person who is released on his own recognizance or on bail:

13 1. Place the person in the custody of a designated person or
14 organization agreeing to supervise him.

15 2. Place restrictions on the person's travel, associates or place
16 of abode during the period of release.

17 3. Require the deposit with the clerk of the court of cash or other
18 security, such deposit to be returned on the performance of the conditions
19 of release.

20 4. Prohibit the person from possessing any deadly weapon or
21 engaging in certain described activities or indulging in intoxicating
22 liquors or certain drugs.

23 5. Require the person to report regularly to and remain under the
24 supervision of an officer of the court.

25 6. Impose any other conditions deemed reasonably necessary to
26 assure appearance as required including a condition requiring that the
27 person return to custody after specified hours.

28 E. In addition to any of the conditions a judicial officer may
29 impose pursuant to subsection D of this section, the judicial officer
30 shall impose both of the following conditions on a person who is charged
31 with a felony violation of chapter 14 or 35.1 of this title or section
32 13-3212 OR ~~{{A}}~~ {{A FELONY}} OFFENSE INVOLVING DOMESTIC VIOLENCE AS
33 DEFINED IN SECTION 13-3601 ~~{{and who}}~~ {{THAT RESULTS IN PHYSICAL HARM
34 AGAINST ANOTHER PERSON IF THE PERSON}} is released on his own recognizance
35 or on bail:

36 1. Electronic monitoring where available.

37 2. A condition prohibiting the person from having any contact with
38 the victim.

39 F. The judicial officer who authorizes the release of the person
40 charged on his own recognizance or on bail shall do all of the following:

41 1. Issue an appropriate order containing statements of the
42 conditions imposed.

43 2. Inform the person of the penalties that apply to any violation
44 of the conditions of release.

45 3. Advise the person that a warrant for his arrest may be issued
46 immediately on any violation of the conditions of release, including the
47 failure to submit to deoxyribonucleic acid testing ordered pursuant to
48 paragraph 4 of this subsection.

1 4. If the person is charged with a felony or misdemeanor offense
2 listed in section 13-610, subsection 0, paragraph 3 and is summoned to
3 appear, order the person to report within five days to the law enforcement
4 agency that arrested the person or to the agency's designee and submit a
5 sufficient sample of buccal cells or other bodily substances for
6 deoxyribonucleic acid testing and extraction. If a person does not comply
7 with an order issued pursuant to this paragraph, the court shall revoke
8 the person's release.

9 G. At any time after providing notice to the victim pursuant to
10 section 13-4406, the judicial officer who orders the release of a person
11 on any condition specified in this section or the court in which a
12 prosecution is pending may amend the order to employ additional or
13 different conditions of release, including either an increase or reduction
14 in the amount of bail. On application, the defendant shall be entitled to
15 have the conditions of release reviewed by the judicial officer who
16 imposed them or by the court in which the prosecution is pending.
17 Reasonable notice of the application shall be given to the county attorney
18 and the victim.

19 H. Any information that is stated or offered in connection with any
20 order pursuant to this section need not conform to the rules pertaining to
21 admissibility of evidence in a court of law.

22 I. This section does not prevent the disposition of any case or
23 class of cases by forfeiture of bail or collateral security if such
24 disposition is authorized by the court.

25 J. A judicial officer who orders the release of a juvenile who is
26 enrolled in a school and who has been transferred to the criminal division
27 of the superior court pursuant to section 8-327 or who has been charged as
28 an adult pursuant to section 13-501 shall notify the appropriate school on
29 the release of the juvenile from custody.

30 K. For the purposes of this section and section 13-3968, "judicial
31 officer" means any person or court authorized pursuant to the constitution
32 or laws of this state to bail or otherwise release a person before trial
33 or sentencing or pending appeal.

34 <<Sec. 3. Section 25-403.03, Arizona Revised Statutes, is amended
35 to read:

36 25-403.03. Domestic violence; court considerations;
37 presumption; conditions on parenting time;
38 definition

39 A. Notwithstanding ~~[subsection]~~ [SUBSECTIONS] D [AND F] of this
40 section, [NEITHER] joint legal decision-making [NOR UNSUPERVISED PARENTING
41 TIME] shall ~~[not]~~ be awarded if the court makes a finding of the existence
42 of significant domestic violence pursuant to section 13-3601 or if the
43 court finds by a preponderance of the evidence that there has been a
44 significant history of domestic violence. [TO DETERMINE WHETHER
45 SIGNIFICANT DOMESTIC VIOLENCE OR A SIGNIFICANT HISTORY OF DOMESTIC
46 VIOLENCE HAS OCCURRED, THE COURT SHALL CONSIDER ALL OF THE FOLLOWING:
47 1. THE SERIOUSNESS OF THE PARTICULAR ACT OR ACTS OF DOMESTIC
48 VIOLENCE.

1 2. THE FREQUENCY OR PERVASIVENESS OF THE ACT OR ACTS OF DOMESTIC
2 VIOLENCE.

3 3. THE AMOUNT OF TIME SINCE THE ACT OR ACTS OF DOMESTIC VIOLENCE
4 OCCURRED.

5 4. THE IMPACT OF THE ACT OR ACTS OF DOMESTIC VIOLENCE.]

6 B. The court shall consider evidence of domestic violence as being
7 contrary to the best interests of the child. The court shall consider the
8 safety and well-being of the child [TO BE THE CONTROLLING FACTOR IN ANY
9 DETERMINATION OF LEGAL DECISION-MAKING OR PARENTING TIME MATTER] and [THE
10 SAFETY] of the victim of the act of domestic violence to be of primary
11 importance. The court shall consider a perpetrator's history of causing
12 or threatening to cause physical harm to another person.

13 C. To determine if a person has committed an act of domestic
14 violence the court, subject to the rules of evidence, shall consider all
15 relevant factors~~[.]~~ including the following:

16 1. Findings from another court of competent jurisdiction.

17 2. Police reports.

18 3. Medical reports.

19 4. Records of the department of child safety.

20 5. Domestic violence shelter records.

21 6. School records.

22 7. Witness testimony.

23 D. If the court determines that a parent who is seeking sole or
24 joint legal decision-making has committed an act of domestic violence
25 against the other parent, there is a rebuttable presumption that an award
26 of sole or joint legal decision-making to the parent who committed the act
27 of domestic violence is contrary to the child's best interests. This
28 presumption does not apply if both parents have committed an act of
29 domestic violence. For the purposes of this subsection, a person commits
30 an act of domestic violence if that person does any of the following:

31 1. Intentionally, knowingly or recklessly causes or attempts to
32 cause sexual assault or serious physical injury.

33 2. Places a person in reasonable apprehension of imminent serious
34 physical injury to any person.

35 3. Engages in a pattern of behavior for which a court may issue an
36 ex parte order to protect the other parent who is seeking child custody or
37 to protect the child and the child's siblings.

38 E. To determine ~~[+]~~ [WHETHER] the parent has rebutted the
39 presumption [PRESCRIBED IN SUBSECTION D OF THIS SECTION.] the court shall
40 consider all of the following:

41 1. Whether the parent has demonstrated that being awarded sole or
42 joint legal decision-making or substantially equal parenting time is in
43 the child's best interests.

44 ~~2. Whether the parent has successfully completed a batterer's~~
45 ~~prevention program.~~

46 ~~3. Whether the parent has successfully completed a program of~~
47 ~~alcohol or drug abuse counseling, if the court determines that counseling~~
48 ~~is appropriate.~~

~~4. Whether the parent has successfully completed a parenting class, if the court determines that a parenting class is appropriate.]~~

~~[5.] [2.]~~ If the parent is on probation, parole or community supervision, whether the parent is restrained by a protective order that was granted after a hearing.

~~[6.] [3.]~~ Whether the parent has committed any further acts of domestic violence.

[4. WHETHER THE PARENT HAS COMPLETED ANY OF THE FOLLOWING PROGRAMS OR CLASSES, BUT THE COURT MAY NOT CONSIDER THE COMPLETION OF ANY PROGRAM OR CLASS ALONE AS PROOF OF REHABILITATION OR THAT THE PARENT HAS REBUTTED THE PRESUMPTION PRESCRIBED IN SUBSECTION D OF THIS SECTION:]

(a) A DOMESTIC VIOLENCE PROGRAM.

(b) AN ALCOHOL OR DRUG ABUSE COUNSELING PROGRAM.

(c) A PARENTING CLASS.]

F. If the court finds that a parent has committed an act of domestic violence, that parent has the burden of proving to the court's satisfaction that parenting time will not endanger the child or significantly impair the child's emotional development. If the parent meets this burden to the court's satisfaction, the court shall place conditions on parenting time that best protect the child and the other parent from further harm. The court may:

1. Order that an exchange of the child must occur in a protected setting as specified by the court.

2. Order that an agency specified by the court must supervise parenting time. If the court allows a family or household member to supervise parenting time, the court shall establish conditions that this person must follow during parenting time.

3. Order the parent who committed the act of domestic violence to attend and complete, to the court's satisfaction, a program of intervention for perpetrators of domestic violence and any other counseling the court orders.

4. Order the parent who committed the act of domestic violence to abstain from possessing or consuming alcohol or controlled substances during parenting time and for twenty-four hours before parenting time.

5. Order the parent who committed the act of domestic violence to pay a fee for the costs of supervised parenting time.

6. Prohibit overnight parenting time.

7. Require a bond from the parent who committed the act of domestic violence for the child's safe return.

8. Order that the address of the child and the other parent remain confidential.

9. Impose any other condition that the court determines is necessary to protect the child, the other parent and any other family or household member.

G. The court shall not order joint counseling between a victim and the perpetrator of domestic violence. The court may provide a victim with written information about available community resources related to domestic violence.

1 H. The court may request or order the services of the department of
2 child safety if the court believes that a child may be the victim of child
3 abuse or neglect as defined in section 8-201.

4 I. In determining whether the absence or relocation of a parent
5 shall be weighed against that parent in determining legal decision-making
6 or parenting time, the court may consider whether the absence or
7 relocation was caused by an act of domestic violence by the other parent.

8 [J. FOR THE PURPOSES OF THIS SECTION, "SIGNIFICANT DOMESTIC
9 VIOLENCE" INCLUDES ~~{[, BUT IS NOT LIMITED TO, EITHER]}~~ {[ANY]} OF THE
10 FOLLOWING:

11 1. THE THREATENED, RISKED OR INFLICTED PHYSICAL INJURY OR EMOTIONAL
12 TRAUMA ~~{[, INCLUDING SEXUAL ASSAULT.]}~~ BY A PARENT ON A CHILD OR THE OTHER
13 PARENT.

14 2. AN ACT OR ACTS BY A PARENT THAT INVOLVE THE THREAT, USE OR
15 BRANDISHING OF A FIREARM OR OTHER DANGEROUS WEAPON TO THREATEN OR
16 INTIMIDATE A CHILD OR THE OTHER PARENT.]

17 ~~{[3. A PARENT'S PATTERN OF COERCIVE OR CONTROLLING BEHAVIOR THAT IS~~
18 ~~INTENDED TO DOMINATE, INTIMIDATE, ISOLATE OR RESTRICT THE AUTONOMY OF THE~~
19 ~~OTHER PARENT, INCLUDING ANY OF THE FOLLOWING:~~

20 ~~(a) CONTROLLING OR MONITORING DAILY ACTIVITIES, MOVEMENTS,~~
21 ~~COMMUNICATIONS, FINANCES, TRAVEL, ASSOCIATIONS OR ACCESS TO SERVICES.~~

22 ~~(b) ISOLATING THE OTHER PARENT FROM FAMILY OR SUPPORT SYSTEMS.~~

23 ~~(c) USING THREATS, INCLUDING THREATS OF SELF-HARM OR SUICIDE, TO~~
24 ~~COMPEL COMPLIANCE.]>>~~

25 Enroll and engross to conform

26 Amend title to conform

J.D. MESNARD

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